

**SOLE SOURCE JUSTIFICATION**

(Simplified Acquisition Procedures under FAR Part 13 Not Exceeding \$250K)

**1. Agency/Contracting Activity:**

MICC-FORT BELVOIR  
 9410 JACKSON LOOP  
 BLDG. 1425  
 FORT BELVOIR VA 22060-5116

**2. Description of Action:**

Nature: ☐ New Requirement ☒ Follow-On Requirement  
☐ Mod to Existing Purchase Order/Contract Number

Pricing: ☒ Firm-Fixed Price ☐ Time and Materials

Funds: ☒ OMA ☐ Other Funds: \_\_\_\_\_

**3. Description of Supplies/Services:**

a. The total estimated dollar value of the proposed action is \$ [REDACTED] \_\_\_\_\_

b. The Directorate of Emergency Services' (DES) primary means of communication are base stations radios, hand-held radios, mobile radios and other emergency mobile equipment. Communication is a major part of emergency response for Law Enforcement, Fire and Emergency Rescue, Medical and Security Forces. This contract will provide the DES the means and ability to ensure the primary communication equipment is locally repaired/returned with the shortest possible turn-around. Without properly operating communication devices, delays in responding to a major incident on Fort Detrick/Forest Glen will cause additional injuries, death, and theft of government property, which are vital to national security. The law enforcement vehicles are replaced every five to six years, so this contract would also cover the old radio equipment being removed and installed into the new vehicle(s). The turn-around time frame to return the old vehicle to GSA is one week before additional fees are billed to the agency, this quick turn-around also supports using a local vendor to ensure those deadlines are met so that excess funds are not expended.

c.

| Qty | Description                            |
|-----|----------------------------------------|
| 137 | Maintenance for XG100 Unity Portables  |
| 137 | Programming for XG100 Unity Portables  |
| 40  | Maintenance for XG 100M Unity Mobiles  |
| 40  | Programming for XG 100M Unity Mobiles  |
| 45  | Maintenance for XL 200 Unity Portables |
| 45  | Programing for XL 200 Unity Portables  |

|   |                                       |
|---|---------------------------------------|
| 5 | Maintenance for XL 200M Unity Mobiles |
| 5 | Programing for XL 200M Unit Mobiles   |
| 1 | Programming for any modifications     |
| 1 | Support of police vehicles            |

Base Period: 03-29-2025 to 03-28-2026  
Option Period 1: 03-29-2026 to 03-28-2027  
Option Period 2: 03-29-2027 to 03-28-2028  
Option Period 3: 03-29-2028 to 03-28-2029  
Option Period 4: 03-29-2029 to 03-28-2030  
- 8 Extension: 03-29-2030 to 09-28-2030

Total Value: [REDACTED]

#### 4. Authority:

##### Action using Simplified Acquisition Procedures

☒ **FAR 13.106-1(b) (1):** For purchases not exceeding the simplified acquisition threshold (SAT), contracting officers may solicit from one source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available due to exclusive licensing agreements.

**5. Reason for Authority Cited:** As referenced in a corporate letter dated 12 March 2025, by L3Harris Corporation, Superior Communications Inc. (SCI) is the only authorized vendor approved to work on the Harris Land Mobile Radio System throughout the National Capital Region (NCR). Currently, equipment for these systems falls under L3 Harris intellectual property rights and the proprietary protocols represent a patent, copyright or secret process and are, therefore, currently only available from the manufacturer, L3 Harris Corporation. L3 Harris Corporation has verified that SCI is currently the only authorized vendor to provide sales and service support throughout the NCR. L3 Harris Corporation has certified in writing that they consider Fort Detrick, MD (Frederick County) to be part of the National Capital Region via email dated 21 January 2025.

**6. Actions to Increase Competition:** Fort Detrick contacted [REDACTED] but they were not able to satisfy the requirement. [REDACTED] is not an authorized vendor to work on Harris radios. [REDACTED] is only authorized to work on Motorola radios, which Fort Detrick does not currently have.

**7. Market Research:** Market Research was conducted with Superior Communications Inc. and [REDACTED] as those are the two primary maintenance providers in the local area. Superior Communications is the only authorized Harris dealer within the NCR. [REDACTED] is not authorized on Harris based systems – only Motorola. Fort Detrick Directorate of Operations (DOO) did not have a previous contract, the radios were either repaired on site by the Network Enterprise Center (NEC) LMR techs or they were under warranty. A contract must be put into

place because the local NEC no longer has LMR staff, and the radios are out of warranty. A Sources Sought was posted on 26 April 2024 to the System for Award Maintenance website, SAM.gov, and closed on 15 May 2024. Two certified Small Businesses responded to the Sources Sought Notice (SSN) by providing their capability statement to the Government.

## 8. Procurement History:

Previous Purchase Orders(s) or Contract(s): ☒ Yes ☐ No

Purchase order or contract number: W91QV119C0134

Was action competed? ☒ Yes ☐ No

If action was not competed, state the cited authority, summarize rationale: \_\_\_\_\_

## 9. Additional information to support the justification:

1. W91QV119C0134 was awarded for the Fort Detrick Directorate of Emergency Services. A J&A under the authority of FAR Part 13.501 was completed/approved for LMR Maintenance and Repair Services. Superior Communications Inc. (SCI) is the only authorized vendor approved to work on the Harris Land Mobile Radio System throughout the National Capital Region (NCR). Currently, equipment for these systems falls under Harris intellectual property rights and the proprietary protocols represent a patent, copyright or secret process and are, therefore, currently only available from the manufacturer, Harris Corporation. Harris Corporation has verified that SCI is currently the only authorized vendor to provide sales and service support throughout the NCR. L3 Harris Corporation has certified in writing that they consider Fort Detrick, MD (Frederick County) to be part of the NCR via email dated 20 September 2019.

2. W91QV120C0101 was awarded for was awarded for the Joint Base Myer-Henderson Hall Directorate of Emergency Services. As referenced in a direct statement dated 01 July 2019, by L3Harris Corporation, Superior Communications Inc. (SCI) is the only authorized vendor approved to work on the L3Harris Land Mobile Radio System throughout the National Capital Region (NCR). Currently, equipment for these systems falls under L3Harris intellectual property rights and the proprietary protocols represent a patent, copyright or secret process and are, therefore, currently only available from the manufacturer, L3Harris Corporation. L3 Harris Corporation has verified that SCI is currently the only authorized vendor to provide sales and service support throughout the NCR. L3Harris Corporation has certified in writing that they consider Fort Detrick, MD (Frederick County) to be part of the National Capital Region via email dated 1 July 2019.

**10. Technical/Requirements Certification:** I certify that the supporting data under my cognizance which is included in the justification are accurate and complete to the best of my knowledge and belief.

**Submitted By:** [REDACTED]

**Position Title:** [REDACTED]  
[REDACTED]

Signature: [REDACTED]

**11. Fair and Reasonable Price Determination:** As Contracting Officer, I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination will be made using the independent government cost estimate in comparison with the offeror's proposed cost. A comparison of the offeror's proposed cost with previous contracts W91QV1-19-C-0134 will be performed after considering an annual escalation for maintenance. As part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial.

**Name:** [REDACTED]

**Title:** [REDACTED]

**Email:** [REDACTED]  
[REDACTED]

Signature: [REDACTED]

**12. Contracting Officer's Approval:**

I hereby certify that this Justification is accurate and complete to the best of my knowledge and belief. Based on the foregoing, I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

**Name:** [REDACTED]

**Title:** [REDACTED]

**Email:** [REDACTED]  
[REDACTED]

Signature: [REDACTED]